

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
VICTOR HINES,

Plaintiff,

-against-

Index No.
Plaintiff designates
QUEENS County
as the place of trial

THE CITY OF NEW YORK, P.O. FRANCIS DELVIN, Shield No.:
24637, Individually and in His Official Capacity, P.O. MICHAEL
TERNEY, Shield No.: 24449, Individually and in His Official
Capacity, SGT. MATTHEW BARBER, Shield No.: 00503,
Individually and in His Official Capacity, P.O. JENNY PAYEA,
Shield No.: 31606, Individually and in Her Official Capacity, and
P.O.s "JOHN DOE" # 1-10, Individually and in Their Official
Capacities, (the name John Doe being fictitious, as the true names
are presently unknown),

Defendants.

SUMMONS

The basis of this
venue is where the
incident arose

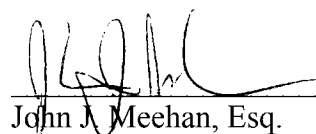
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TO THE ABOVE NAMED DEFENDANT(S):

- The City of New York – 100 Church Street, New York, NY 10007
- P.O. Francis Delvin, Shield No.: 24637 – 1 Police Plaza Path, New York, NY 10007
- P.O. Michael Terney, Shield No.: 24449 – 16-12 Mott Ave, Far Rockaway, NY 11691
- Sgt. Matthew Barber, Shield No.: 00503 – IAB - 315 Hudson St, New York, NY 10013
- P.O. Jenny Payea, Shield No.: 31606 – 16-12 Mott Ave, Far Rockaway, NY 11691

YOU ARE HEREBY SUMMONED TO ANSWER the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
May 15, 2018

JON L. NORINSBERG, PLLC



John J. Meehan, Esq.
Attorney for Plaintiff
225 Broadway, Suite 2700
New York, New York 10007
Tel.: (212) 791-5396
Fax: (212) 406-6890

Defendant(s)' Address:

The City of New York
100 Church Street
New York, NY 10007

P.O. Francis Delvin
1 Police Plaza Path
New York, NY 10007

P.O. Michael Terney
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COUNTY OF QUEENS

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VICTOR HINES,

Plaintiff,

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THE CITY OF NEW YORK, P.O. FRANCIS DELVIN,
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and in His Official Capacity, SGT. MATTHEW BARBER,
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Individually and in Their Official Capacities, (the name John
Doe being fictitious, as the true names are presently unknown),

Defendants.
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Plaintiff, VICTOR HINES, by his attorneys, Jon L. Norinsberg, PLLC, complaining of the
Defendants, respectfully allege as follows:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States. Plaintiff also brings this action for violation of his rights under New York State law.

PARTIES

2. Plaintiff is an African-American male and at all relevant times a resident of the County of Queens, in the City and State of New York.

3. Defendant, the City of New York, was and is a municipal corporation duly organized

COMPLAINT

**Plaintiff designates
Queens County as the
place for trial. The
basis of the venue as
Queens County is the
place where the
incident arose.**

and existing under and by virtue of the laws of the State of New York.

4. Defendant, the City of New York, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, the City of New York.

5. At all times hereinafter mentioned, the individually named defendants, P.O. FRANCIS DELVIN, P.O. MICHAEL TERNEY, P.O. PAYEA, SGT. MATTHEW BARBER and P.O.s "JOHN DOE" # 1-10, were and still are individuals employed as police officers, detectives, agents and servants and/or employees of said department and were acting under the supervision of said department and according to their official duties.

6. At all times hereinafter mentioned, the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

7. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting within the scope of their employment by Defendant, City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said Defendants while acting in furtherance of their employment with defendant, City of New York.

FACTS

9. On or about December 5, 2014, at approximately 2:30 a.m., Plaintiff VICTOR HINES was lawfully present near the Beach 60 Street Subway Station in the County of Queens, in the City and State of New York.

10. Thereafter, Plaintiff VICTOR HINES and two other African-American males were

arrested and charged with, *inter alia*, Attempted Robbery in the Third Degree and Possession of an Unlawful Imitation Pistol.

11. At no time did Plaintiff VICTOR HINES ever attempt to rob anyone.
12. At no time was Plaintiff VICTOR HINES in possession of an imitation pistol.
13. There was no physical evidence connecting Plaintiff VICTOR HINES to any crimes.
14. There was no forensic evidence connecting Plaintiff VICTOR HINES to any crimes.
15. There was no DNA evidence connecting Plaintiff VICTOR HINES to any crimes.
16. In connection with Plaintiff VICTOR HINES unlawful arrest, defendant officers intentionally filled out false and misleading reports, and forwarded these false reports to prosecutors in the Queens County District Attorney's office.
17. Throughout the prosecution, Plaintiff's co-arrestees maintained that Plaintiff VICTOR HINES played no role in the alleged crime, and that they did not even know Plaintiff.
18. Further, defendant officers withheld from prosecutors material exculpatory information which would have resulted in the exoneration of Plaintiff VICTOR HINES.
19. As a result of his unlawful arrest, Plaintiff VICTOR HINES spent approximately three (3) years and one (1) month in jail and made numerous court appearances in order to defend himself against the baseless false charges against him that defendants had filed against him.
20. On January 25, 2018 all charges against Plaintiff VICTOR HINES were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION
(Violation of the Civil Rights Pursuant to 42 U.S.C. §1983)

21. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

22. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

23. All of the aforementioned acts deprived Plaintiff VICTOR HINES of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

24. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and/or corrections officials, with all the actual and/or apparent authority attendant thereto.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

26. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.

27. The acts complained of deprived Plaintiff VICTOR HINES of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;

- C. To be free from searches not based upon probable cause;
- D. To be free from unwarranted and malicious criminal prosecution; and
- E. To receive equal protection under the law.

28. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS FOR A SECOND CAUSE OF ACTION
(Malicious Prosecution Under 42 U.S.C. § 1983)

29. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

30. Defendants misrepresented and falsified evidence before the District Attorney.

31. Defendants did not make a complete and full statement of facts to the District Attorney.

32. Defendants withheld exculpatory evidence from the District Attorney.

33. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff VICTOR HINES.

34. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff VICTOR HINES.

35. Defendants acted with malice in initiating criminal proceedings against Plaintiff.

36. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff VICTOR HINES.

37. Defendants lacked probable cause to continue criminal proceedings against Plaintiff VICTOR HINES.

38. Defendants acted with malice in continuing criminal proceedings against Plaintiff VICTOR HINES.

39. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

40. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in Plaintiff VICTOR HINES' favor on January 25, 2018, when all charges against him were dismissed.

41. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A THIRD CAUSE OF ACTION
(Denial of Constitutional Right to a Fair Trial Under
42 U.S.C. § 1983 Based on Fabricated Evidence)

42. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

43. Defendants created false evidence against Plaintiff VICTOR HINES.

44. Defendants forwarded false evidence and false information to prosecutors in the Queens County District Attorney's Office.

45. In creating false evidence against Plaintiff VICTOR HINES, in forwarding false evidence and information to prosecutors, and in providing false and misleading testimony, defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

46. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, and he was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

47. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FOURTH CAUSE OF ACTION
(Malicious Abuse of Process Under 42 U.S.C. § 1983)

48. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

49. The aforementioned individual defendants issued legal process to place Plaintiff VICTOR HINES under arrest.

50. The aforementioned individual defendants arrested Plaintiff VICTOR HINES in order to obtain a collateral objective outside the legitimate ends of the legal process.

51. The aforementioned individual defendants acted with intent to do harm to Plaintiff VICTOR HINES, without excuse or justification.

52. As a result of the foregoing, Plaintiff VICTOR HINES sustained, *inter alia*, deprivation of liberty, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

53. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A FIFTH CAUSE OF ACTION
(Municipal Liability Under 42 U.S.C. §1983)

54. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

55. Defendants P.O. FRANCIS DELVIN, P.O. MICHAEL TERNEY, P.O. PAYEA, SGT. MATTHEW BARBER and P.O.s "JOHN DOE" # 1-10, arrested and incarcerated Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

56. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

57. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

58. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs.

59. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.

61. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, Plaintiff VICTOR HINES was falsely arrested and incarcerated for approximately (3) years and one (1) month.

62. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff VICTOR HINES.

63. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

64. All of the foregoing acts by defendants deprived Plaintiff VICTOR HINES of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. Not to have cruel and unusual punishment imposed upon them; and
- E. To receive equal protection under the law.

65. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A SIXTH CAUSE OF ACTION
(Under N.Y. State Law: False Arrest)

66. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

67. Plaintiff has complied with all the conditions precedent of the bringing of this action and has complied with all provisions of the Charter of the City of New York, and the Plaintiff has, prior to the bringing of this action and within ninety days from Plaintiff's release from jail hereinafter described were received, duly served notice upon the Corporation Counsel and the Comptroller for the City of New York of their intention to sue upon the claim set forth. More than thirty days have elapsed since the presentation of the Notice of Claim on March 1, 2018, and that the said claim remains unadjusted and the said Comptroller has failed and/or refused to make any adjustment thereof. Plaintiff plans on appearing for a hearing pursuant to Municipal Law §50-h, once notice of said hearing is received. The instant action is being filed within one year and ninety days of the date in which Plaintiffs' claims accrued.

68. The defendant police officers willfully and intentionally arrested Plaintiff without probable cause and without a reasonable basis to believe such cause existed.

69. By so doing, the defendant police officers subjected the Plaintiff to false arrest and imprisonment, and thereby violated and aided and abetted in the violation of Plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

70. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AND AS FOR AN SEVENTH CAUSE OF ACTION
(Under N.Y. State Law: False Imprisonment)

71. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

72. As a result of the foregoing, Plaintiff VICTOR HINES was falsely imprisoned, his liberty was restricted for approximately three (3) years and one (1) month, was put in fear for his safety, was humiliated and subjected to handcuffing, and other physical restraints.

73. Plaintiff VICTOR HINES was conscious of said confinement and did not consent to same.

74. The confinement of Plaintiff VICTOR HINES was without probable cause and was not otherwise privileged.

75. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AND AS FOR A EIGHTH CAUSE OF ACTION
(Under N.Y. State Law: Malicious Prosecution)

76. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

77. Defendants misrepresented and falsified evidence before the District Attorney.

78. Defendants did not make a complete and full statement of facts to the District Attorney.

79. Defendants withheld exculpatory evidence from the District Attorney.

80. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff VICTOR HINES.

81. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff VICTOR HINES.

82. Defendants acted with malice in initiating criminal proceedings against Plaintiff VICTOR HINES.

83. Defendants were directly and actively involved in the continuation of criminal m proceedings against Plaintiff VICTOR HINES.

84. Defendants lacked probable cause to continue criminal proceedings against Plaintiff VICTOR HINES.

85. Defendants acted with malice in continuing criminal proceedings against VICTOR HINES.

86. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

87. Notwithstanding the perjurious and fraudulent conduct of defendants, the criminal proceedings were terminated in Plaintiff VICTOR HINES' favor on January 25, 2018, when all charges against him were dismissed.

88. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR A NINTH OF ACTION
(Negligent Hiring/Training/Retention)

89. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

90. Defendant THE CITY OF NEW YORK owed a duty to the public at large, including but not limited Plaintiff VICTOR HINES, to exercise reasonable care in the selection, hiring and

retention of all of its employees, and in particular, those employees with the job responsibility of dealing with the public at large.

91. Defendant THE CITY OF NEW YORK failed to use reasonable care when it hired P.O. FRANCIS DELVIN, P.O. MICHAEL TERNEY, P.O. PAYEA, SGT. MATTHEW BARBER and P.O.s "JOHN DOE" # 1-10.

92. Defendant THE CITY OF NEW YOK failed to make reasonable inquiries into the background of the subject defendants, and in particular, into their fitness as doctors and/or police officers.

93. Had defendant THE CITY OF NEW YORK used reasonable care in inquiring into the background of these defendants, it would have learned that they were patently unqualified for this position, and it would not have hired them.

94. As a result of the foregoing, defendant THE CITY OF NEW YORK breached its duty to use reasonable care in the selection and hiring of all of its employees.

95. As a result of THE CITY OF NEW YORK'S negligence in hiring defendants, Plaintiff VICTOR HINES was falsely arrested and spent approximately three (3) years and one (1) month in jail on completely baseless criminal charges.

96. Notwithstanding THE CITY OF NEW YORK'S knowledge of the propensities of these defendants, and their patently deficient qualifications, defendant CITY OF NEW YORK retained these defendants as employees.

97. In choosing to hire, and then retain, the subject defendants, defendant THE CITY OF NEW YORK breached its duty to the public at large, and to Plaintiff VICTOR HINES in particular, to use reasonable care in the selection of its employees.

98. By reason of the foregoing, Plaintiff VICTOR HINES is entitled to recover full compensatory damages, including damages for pain and suffering, severe emotional distress psychological trauma, past lost earnings and future lost earnings, from Defendant CITY OF NEW YORK.

99. As a result of the foregoing, Plaintiff VICTOR HINES has been damaged in the amount of TEN MILLION DOLLARS (\$10,000,000.00) and is further entitled to punitive damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

AS AND FOR AN TENTH CAUSE OF ACTION
(Under N.Y. State Law Intentional Infliction of Emotional Distress)

100. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

101. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

102. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

103. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

104. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to Plaintiffs.

105. As a result of the aforementioned conduct, Plaintiff VICTOR HINES suffered severe emotional distress, physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

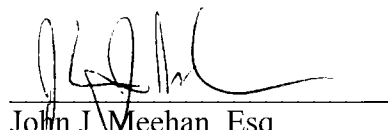
WHEREFORE, Plaintiff VICTOR HINES demands judgment against the defendants as follows:

- (1) On all causes of action, compensatory damages in the amount of \$10,000,000.00;
- (2) On all causes of action, punitive damages in the amount of \$10,000,000.00; and
- (3) Costs and disbursements of this action, including attorney's fees, and for such other
and further relief as to this Court may deem just and proper.

Dated: New York, New York
May 15, 2018

JON L. NORINSBERG, PLLC

BY:



John J. Meehan, Esq.
Attorneys for Plaintiff
225 Broadway, Suite 2700
New York, N.Y. 10007
Tel.: (212) 791-5396
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SUMMONS AND COMPLAINT

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